Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 456

RESOLUTION URGING THE OFFICE OF THE CIVIL REGISTRAR GENERAL, THE PHILIPPINE STATISTICS AUTHORITY, AND THE *SHARI'AH* COURTS TO REITERATE STRICT ADHERENCE TO REGISTRATION OF MUSLIM DIVORCES PER ADMINISTRATIVE ORDER NO. 1, SERIES OF 2005

WHEREAS, Executive Order No. 157 issued on February 15, 1994, by then President of the Republic of the Philippines, Fidel V. Ramos, established the Civil Registration System for Muslim Filipinos;

WHEREAS, Administrative Order No. 2, Series of 1993 as amended by Administrative Order No. 1 Series of 2005 states that Muslim divorce (*talaq*) and revocation of divorce (*talaq*) shall be recorded. Under Article 83 of Presidential Decree No. 1083, otherwise known as *"Code of Muslim Personal Laws of the Philippines"* likewise, is the responsibility of the Clerk of Court of the *Shari'ah* Circuit Court;

WHEREAS, Rule 10 of Administrative Order No. 1, Series of 2005, states that *"Any Muslim husband who has pronounced a divorce (talaq) shall, without delay, file with the Clerk of Court of the Shari'ah Circuit Court in the place where his family resides or domiciles, or in the most accessible Shari'ah Court. A written notice of such fact and the circumstances attendant thereto, after having served a copy thereof to the wife concerned. The notice filed shall be conclusive evidence that divorce (talaq) has been pronounced and shall constitute the Certificate of Divorce. In case the divorce is through a court decree, the corresponding decision shall constitute the Certificate of Divorce;"*

WHEREAS, the Philippine Statistics Authority provides information on civil registry documents and certifications such as Birth Certificate, Marriage Certificate, Death Certificate, Certificate of No Marriage Record, but none for Muslim divorce certification in compliance with Administrative Order 001, S. 2005;

WHEREAS, the same Rule above provides that *"All Certificates of Divorce or Court Decrees shall be registered in the Shari'ah Circuit Court furnished to the Local Civil Registrar. The Shari'ah Circuit Court or Local Civil Registrar Officer where the marriage was registered shall be furnished a copy of the Certificate of Divorce or Court Decree for annotation in the Certificate of Marriage and the Marriage Register. Five (5) copies of the Certificate of Divorce or Court Decree shall be submitted for registration within thirty (30) days after the date of divorce by the interested party;"*

WHEREAS, The Circuit Registrar shall distribute the five (5) copies of the Certificate of Divorce or court decree of divorce as follows: first copy to the husband; second copy to the wife; third copy to the Office of the Civil Registrar General; the fourth copy to the District Registrar; and the fifth copy for his file;

WHEREAS, it has been laid down in the rules, the registration of Muslim divorce, yet the majority of the populace are not practicing the same, the registration of divorce settlements;

WHEREAS, under Rule 15 of Administrative Order No. 1, Series of 2005, states that *"Any person found violating this Order shall be liable under the existing civil registry laws, P.D. 1083, civil service laws and other pertinent laws;"*

WHEREAS, Article 183, Chapter II, Title V of Presidential Decree No. 1083 or the *"Muslim Code of the Philippines"*, states that *"Offenses relative to subsequent marriage, divorce, and revocation of divorce. A person who fails to comply with the requirements of Articles 85, 161, and 162 of this Code shall be penalized by arresto mayor or a fine of not less than two hundred pesos (₱200.00) but not more than two thousand pesos (₱2,000.00), or both, in the discretion of the court;"*

WHEREAS, under Article 184, Chapter II, Title V of the same Presidential Decree declares, *"Failure to report for registration. Except as provided in the article immediately preceding, a person who knowingly fails to perform his duty under this Code to report for registration any fact concerning the civil status of persons shall be punished by a fine of not less than one hundred pesos (₱100.00) but not more than one thousand pesos (₱1,000.00):"*

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To urge the Office of Civil Registrar General, the Philippine Statistics Authority, and the *Shari'ah* Courts to reiterate strict adherence to registration of Muslim divorces per Administrative Order No. 1, Series of 2005.

RESOLVED, FURTHER, To furnish a copy of this Resolution to the Office of Civil Registrar, the Philippine Statistics Authority, and the *Shari'ah* Courts, for appropriate actions.

ADOPTED, *Dhu Al-Qa'dah* 14, 1445/May 22, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

xxx